

To access the courtroom, click or copy and paste this link into your internet browser and scroll to

Department 6: <https://santaclara.courts.ca.gov/online-services/remote-hearings>

LINE	CASE NO.	CASE TITLE	TENTATIVE RULING
9:00 1	25CV424190	AI Technology Systems vs. Renesas Electronics America	Defendant petitions this court to compel plaintiff to produce documents set six. Court finds that Defendant's request for Production No. 83, 84, 85, 86 is overbroad. Court finds that Defendant's request for Production No. 87 (every document supporting allegation that defendant provided Cyberon with confidential information belonging to AITS) is relevant—however, Plaintiff has answered that there are no such documents in its possession. Similarly, Defendant's request for Production No. 88 (every document that supports allegation that Defendant downloaded AITS underlying codes) is relevant—however, Plaintiff has answered that there are no such documents in its possession. Defendant's petition to compel Plaintiff to Produce Documents from Set Six is DENIED.
9:00 2	24CV444671	XH Industrial v Capital Asset Exchange	?
9:00 3	24CV450596	Daniel Skelton, et.al. v. FCA US LLC, et.al	See below
9:00 4	24CV453728	Anthony Flaminiano v. Mercedes Benz, et.al.	Plaintiff moves this court to compel Defendant Mercedes Benz to comply with Court's previous Discovery Order and requests monetary sanctions. On October 9, 2025, this Court ordered Defendant to produce its Person Most Qualified for a deposition within 20 calendar days of the court's order. Defendant failed to provide a date to comply with the court's order until March 16, 2026. Plaintiff's motion to comply with Court's previous Order within 5 calendar days of this order is GRANTED. Court also orders Defendant Mercedes-Benz to pay \$2,635.00 within 5 days of the hearing of this motion.
9:00 5	25CV461473	Wells Fargo Bank vs. Edwin Punzalan	Off calendar
9:00 6	25CV463219	Thi Thuy Dung Cao vs. The City of San Jose	Plaintiff moves this court for leave to amend complaint. Defendant has no objection. Plaintiff's motion is GRANTED. Plaintiff is ordered to amend the complaint within 10 days.

Calendar Line 2

Case Name: *XH Industrial Co., LTD v. Capital Asset Exchange and Trading, LLC*

Defendant Capital Asset Exchange and Trading, LLC (“Capital Asset”) has brought a motion for judgment on the pleadings (“JOP motion”) as to the first, second, third, fourth, fifth, and seventh causes of action alleged in the complaint filed by Plaintiff XH Industrial Co., LTD (“XH”). A JOP motion “is equivalent to a belated general demurrer.” (*Sprague v. County of San Diego* (2003) 106 Cal.App.4th 119, 127.) It has the same function as a general demurrer, but it is made after the time for demurrer has expired.

The court GRANTS Capital Asset’s JOP motion as to the complaint’s fourth and seventh causes of action with 20 days’ leave to amend. “[A]n action based on an implied-in-fact or quasi-contract cannot lie where there exists between the parties a valid express contract covering the same subject matter. However, restitution may be awarded in lieu of breach of contract damages when the parties had an express contract, but it was procured by fraud or is unenforceable or ineffective for some reason. Thus, a party to an express contract can assert a claim for restitution based on unjust enrichment by alleg[ing in that cause of action] that the express contract is void or was rescinded.” (*Rutherford Holdings, LLC v. Plaza Del Rey* (2014) 223 Cal.App.4th 221, 231, internal citations and quotation marks omitted.) “A claim for restitution is permitted even if the party inconsistently pleads a breach of contract claim that alleges the existence of an enforceable agreement.” (*Ibid.*, internal citation omitted; see also *Klein v. Chevron U.S.A., Inc.* (2012) 202 Cal.App.4th 1342, 1388-1389 (*Klein*) [“A plaintiff may not, however, pursue or recover on a quasi-contract claim if the parties have an enforceable agreement regarding a particular subject matter. . . . Although a plaintiff may plead inconsistent claims that allege both the existence of an enforceable agreement and the absence of an enforceable agreement, that is not what occurred here. Instead, plaintiffs’ breach of contract claim pleaded the existence of an enforceable agreement and their unjust enrichment claim did not deny the existence or enforceability of that agreement.”].) Here, the complaint’s fourth and seventh causes of action are “quasi-contract” in nature. Similar to *Klein*, the complaint alleges the existence of an enforceable contract. (Complaint, ¶¶ 52-57.) However, the complaint’s fourth and seventh causes of action do not “deny the existence or enforceability of that agreement.” (*Klein, supra*, 202 Cal.App.4th at p. 1389.) XH has not asserted any reason that the alleged agreement is unenforceable. As in *Klein*, XH’s complaint does “not provide any explanation as to why the . . . agreement referenced in [its] breach of contract claim might be unenforceable or otherwise not qualify as a contract.” (*Ibid.*)

The court GRANTS Capital Asset’s JOP motion as to the complaint’s first, second, and third causes of action with 20 days’ leave to amend. First, the court notes that it does not find Capital Asset’s economic loss rule arguments persuasive as to the first, second, and third causes of action. California permits recovery of tort damages in certain types of contract cases where the duty giving rise to tort liability “is either completely independent of the contract or arises from conduct which is both intentional and intended to harm,” such as where the contract was fraudulently induced—the complaint’s first, second, and third causes of action are premised upon a theory of fraudulent inducement. (*Erllich v. Menezes* (1999) 21 Cal.4th 543, 552 (*Erllich*), internal citation omitted; see also Complaint, ¶¶ 16-41; *Dhital v. Nissan North America, Inc.* (2022) 84 Cal.App.5th 828, 833 (*Dhital*) [“We conclude that, under California law, the economic loss rule does not bar plaintiffs’ fraudulent inducement claim.”].) On reply, Capital Asset